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Case Number: 23STCV26193 Hearing Date: July 1, 2026 Dept: 224

Villagomez v. Futura Truck Line, Inc.,

TENTATIVE RULING

The Motion to Enforce Settlement is GRANTED as to Defendant Futura Truck Line Inc., and judgment shall be entered against Futura Truck Line Inc. in the amount of \$142,500.00. The motion is DENIED as to Juan Ortega, without prejudice to Plaintiff's enforcement of the Personal Guaranty by separate action.

Introduction

On October 26, 2023, Plaintiff Fernando Villagomez filed the Complaint in this action.

On August 4, 2025, following the first day of trial, the parties attended private mediation, reached a settlement, and executed a Memorandum of Understanding

under which Defendant agreed to pay Plaintiff \$142,500.00 in exchange for a dismissal with prejudice and a full release.

On October 30, 2025, the Court entered an order retaining jurisdiction to enforce the settlement pursuant to Code of Civil Procedure section 664.6.

On December 31, 2025, the first settlement installment of \$75,000.00 came due, and Defendant failed to make payment.

On January 5, 2026, Plaintiff served Defendant with written notice of default, and Defendant did not cure within the two-day period provided by the parties' stipulation.

On March 4, 2026, Plaintiff filed the instant Motion to Enforce the Parties' Settlement Under Code of Civil Procedure Section 664.6 and for Entry of Judgment Against Defendant Futura Truck Line Inc. and Juan Ortega.

No opposition or reply has been filed.

Legal Standard

"If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6.) "Section 664.6 empowers a court to enforce a settlement agreement by way of a summary procedure if certain requirements are satisfied. [citations] In order to take advantage of the statute's expedited procedure, a party must first establish the agreement at issue was set forth 'in a writing signed by the parties' (section 664.6) or was made orally before the court [citation]." (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

Discussion

Plaintiff moves to enforce the Memorandum of Understanding executed by the parties following mediation on August 4, 2025. (Kim Decl. ¶ 2, Ex. A.) The MOU was signed by Plaintiff Fernando Villagomez and by Juan Ortega as President of Futura Truck Line Inc. (Id., Ex. A.) In exchange for payment of \$142,500.00,

Plaintiff agreed to dismiss the operative complaint with prejudice and grant a full release. (Id.) The MOU states that it constitutes a written settlement agreement within the meaning of section 664.6, waives mediation confidentiality under Evidence Code sections 1122 and 1123, and authorizes the Court to enforce it. (Id.)

The Court finds the MOU is signed by the parties as section 664.6 requires.

Per the MOU's terms, Defendant was to pay \$75,000.00 by December 31, 2025, \$32,750.00 by February 15, 2026, and \$32,750.00 by March 15, 2026. (Kim Decl. ¶ 2, Ex. A.) The parties separately executed a Stipulation for Entry of Judgment in which Defendant admits liability in the sum of \$142,500.00, waives its right to trial and to appeal, and consents to entry of judgment for \$142,500.00, less any payments made, upon an uncured default. (Kim Decl. ¶ 5, Ex. C.)

Plaintiff establishes that Defendant defaulted. Defendant did not pay the first installment due December 31, 2025. (Kim Decl. ¶¶ 3, 6.) On January 5, 2026, Plaintiff served written notice of default on defense counsel as the Stipulation requires, affording Defendant until January 7, 2026, to cure. (Kim Decl. ¶ 6, Ex. E.) Defendant did not cure and has paid nothing toward the settlement. (Kim Decl. ¶ 3.)

The Court retained jurisdiction to enforce the settlement under section 664.6 by stipulation and order dated October 30, 2025, filed before any dismissal. (Kim Decl. ¶ 7, Ex. D.) Defendant has filed no opposition. On this record, the settlement is enforceable against Defendant Futura Truck Line Inc., which is a party to the action, signed the settlement, admitted liability, and defaulted without curing. Judgment is properly entered against Futura Truck Line Inc. in the amount of \$142,500.00, less any payments made under the Payment Plan. No payments having been made, the judgment amount is \$142,500.00.

Plaintiff also seeks judgment against Juan Ortega individually. The Court cannot grant that relief on this motion. Section 664.6 authorizes entry of judgment only against parties to the pending litigation, and Juan Ortega is not a named defendant in this action. The sole named Defendant is Futura Truck Line Inc. Ortega signed the MOU and the Stipulation for Entry of Judgment in his representative capacity as Futura's president, and the Stipulation by its terms provides for judgment only against "Defendant." Judgment against Ortega individually therefore may not be entered under section 664.6.

Accordingly, the Motion to Enforce Settlement is GRANTED as to Defendant Futura Truck Line Inc., and judgment shall be entered against Futura Truck Line

Inc. in the amount of \$142,500.00. The motion is DENIED as to Juan Ortega, without prejudice to Plaintiff's enforcement of the Personal Guaranty by separate action.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.